



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/11/2026 - 09:00 AM

08/03/2026

11:44 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

26-PRO-00309	IN RE THE TESTAMENTARY TRUST OF MARTIN J. TORTI	Petition for Order Modifying Irrevocable Trust to Appoint Successor Co-Trustee and for Instruction on Distribution to Charitable Beneficiary [Prob. Code 15049(a) and 17200(b)(6)]
Line 11	Petitioner: Axtman, Joan Bellatorre Petitioner: Bank, N.A., BMO Trustor: Torti, Martin J. Interested Party: Home for the Aged of the Little Sisters of the Poor	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Order Modifying Irrevocable Trust to Appoint Successor Co-Trustee and for Instruction on Distribution to Charitable Beneficiary is GRANTED absent cogent objection.

26-PRO-00313	ESTATE OF DELORES JEAN HANNING	
Line 12	Petitioner: HANNING, GARY W. (Pro Se) Decedent: HANNING, DELORES JEAN	Spousal/Domestic Partner Property Petition

Tentative Ruling:

APPEARANCE ORDERED [Zoom not allowed]

Petitioner is to personally appear to address the previously granted request to waive court fees. Additionally, there appear to be errors and inconsistencies in the petition, including but not limited to: Petitioner states he is the guardian or conservator of the estate of the surviving spouse, but he has instead provided documentation that he is the acting power of attorney; the petition asserts the decedent died in 1942; the petition states that the decedent died intestate, yet a copy of her will is attached; there is no Attachment 7A, although the box is checked [there is an attachment "7"]; Moreover, Petitioner filed a proof of service showing he served the interested parties, but it is required that someone **other than Petitioner** serve the notice of hearing and petition. Finally the proposed order must include an attachment describing the property to be confirmed to the surviving spouse.



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26-PRO-00334	ESTATE OF ALICE J. CHAPMAN	
Line 13	Petitioner: CHAPMAN, GERALD J (Pro Se) Decedent: CHAPMAN, ALICE J	Spousal/Domestic Partner Property Petition

Tentative Ruling:

APPEARANCE OPTIONAL

Spousal Property Petition is DENIED without prejudice. Pursuant to the pour-over will attached, it appears that the Decedent intended for all assets in her estate to be part of her Trust. Therefore, the Court cannot confirm assets in decedent's estate as belonging to Petitioner as the surviving spouse. There are procedural problems with the petition as well, including #5(2) is incomplete; neither 7a or 7b are checked, and no attachments describe what property Petitioner is trying to confirm as belong to him; there is no proposed order.

26-PRO-00481	Estate of JON ERICKSON	Spousal Petition (To be filed)- Continued from 05/20/26
Line 14	Petitioner: ERICKSON, LINDA (Pro Se) Decedent: ERICKSON, JON Proposed Personal Representative: Erickson, Linda	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at lines 14 and 15]

Petition for Probate is CONTINUED to November 20, 2026 at 9:00 am to be heard with the Spousal Property Petition in 26-PRO-00481-A.